

PRESS · 14 MAR 2000

La Franchise no. 6

TYPE

DATE

Press article

14 Mar 2000

SUMMARY SHEET

La Franchise no. 6 — L'Officiel de la Franchise · 14 March 2000

Overview: trade press article reproducing a “dictionary of franchising”, an extract from Yves Marot's book “Le Langage de la Franchise”. It is a general documentary item on the law and practice of franchising, with no named link to the parties to the dispute.

Key points

The text defines several concepts of the franchise agreement: the recruitment of franchisees and the franchisor's definition of the ideal profile; refusal to sell (the franchisor may refuse a candidate, a franchisee may not refuse a customer who comes spontaneously from another territory, distinction between passive and active competition); the European block exemption regulation (Article 85 of the Treaty of Rome, franchise regulation No 4087/88 of 30 November 1988, applicable until 31 December 1999); the liability of the franchisor (ineffectiveness of the concept, lack of assistance, failure to respect territorial exclusivities); return on investment (ROI); and the transfer of the franchise agreement, linked to *intuitu personae*.

Significance

Placed in the case file as a reference, this document sheds light on the general framework of franchising, in particular territorial exclusivities and the franchisor's assistance obligations, central themes of the *Collorafi v. McDonald's* dispute.

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Source: bernardcollorafi.org/en/documents/officiel-franchise-dictionary-marot-2000/ — Documentary case file of the lawsuit *Bernard Collorafi v. McDonald's France* (Antibes, 1987–2002). The original scan is authoritative.